

DATA PROCESSING AGREEMENT

This Data Processing Agreement ("DPA") is entered into as of {{SigningDate}} between:

WanAware, Inc. ("Processor")

AND

{{CompanyName}} ("Controller")

1. DEFINITIONS

- "Personal Data" means any information relating to an identified or identifiable natural person
- "Processing" means any operation performed on Personal Data
- "Data Subject" means the individual to whom Personal Data relates
- "Sub-processor" means any third party engaged by Processor to process Personal Data

2. SCOPE AND PURPOSE

Processor shall process Personal Data only:

- a) As necessary to provide services under the Master Service Agreement
- b) In accordance with Controller's documented instructions
- c) In compliance with applicable data protection laws

3. DATA CATEGORIES

The following categories of Personal Data may be processed:

- Contact information (name, email, phone)
- Account credentials
- Network and device information
- Usage and log data

4. PROCESSOR OBLIGATIONS

Processor agrees to:

- a) Process Personal Data only on documented instructions from Controller
- b) Ensure personnel are bound by confidentiality obligations
- c) Implement appropriate technical and organizational security measures
- d) Assist Controller with Data Subject requests
- e) Delete or return Personal Data upon termination
- f) Make available information necessary to demonstrate compliance

5. SECURITY MEASURES

Processor shall implement appropriate measures including:

- a) Encryption of data in transit and at rest
- b) Access controls and authentication
- c) Regular security assessments
- d) Incident response procedures
- e) Business continuity measures

6. SUB-PROCESSORS

- a) Controller authorizes Processor to engage Sub-processors
- b) Processor shall maintain a list of Sub-processors
- c) Processor shall notify Controller of changes to Sub-processors
- d) Processor shall ensure Sub-processors are bound by equivalent obligations

7. DATA BREACH NOTIFICATION

Processor shall notify Controller within 72 hours of becoming aware of a Personal Data breach, providing:

- a) Description of the breach
- b) Categories and approximate number of Data Subjects affected
- c) Likely consequences
- d) Measures taken or proposed to address the breach

8. DATA TRANSFERS

Personal Data transfers outside the EEA shall be subject to appropriate safeguards including:

- a) Standard Contractual Clauses
- b) Binding Corporate Rules
- c) Other approved mechanisms

9. AUDIT RIGHTS

Controller may audit Processor's compliance with this DPA upon reasonable notice.

10. TERM AND TERMINATION

This DPA shall remain in effect for the duration of the Master Service Agreement.

SIGNATURES

WANAWARE, INC. (Processor)

{{CompanyName}} (Controller)

Signature: _____

Signature: _____

Name: _____

Name: {{SignerName}}

Title: _____

Title: {{SignerTitle}}

Date: _____

Date: {{SigningDate}}